

The starting point in our own analysis is the common law. Our cases have proceeded on the assumption that common-law principles of legislative and judicial immunity were incorporated into our judicial system and that they should not be abrogated absent clear legislative intent to do so. See *Pierson v. Ray*, 386 U. S. 547, 554-555 (1967); *Tenney v. Brandhove*, 341 U. S. 367 (1951). Accordingly, the first and crucial question is whether the common law recognized judicial immunity from prospective collateral relief.

At the common law itself, there was no such thing as an injunction against a judge. Injunctive relief was an equitable remedy that could be awarded by the Chancellor only against the parties in proceedings before other courts. See 2 J. Story, *Equity Jurisprudence* ¶875, p. 72 (11th ed. 1873). This limitation on the use of the injunction, however, says nothing about the scope of judicial immunity. And the limitation derived not from judicial immunity, but from the substantive confines of the Chancellor's authority. *Ibid.*

Although there were no injunctions against common-law judges, there is a common-law parallel to the § 1983 injunction at issue here. That parallel is found in the collateral prospective relief available against judges through the use of the King's prerogative writs. A brief excursion into common-law history helps to explain the relevance of these writs to the question whether principles of common-law immunity bar injunctive relief against a judicial officer.

(ED Mo. 1969) (no immunity), cert. denied, 401 U. S. 923 (1971), with *Smallwood v. United States*, 486 F. 2d 1407 (1973), aff'g without opinion, 358 F. Supp. 398, 403 (ED Mo.) (immunity), and *Tate v. Arnold*, 223 F. 2d 782, 786 (1955) (same). That court indicated in 1975, however, that "[t]his circuit has never decided whether those enjoying judicial immunity from damage suits are similarly immune from suits seeking equitable and injunctive relief," see *Bonner v. Circuit Court of St. Louis, Missouri*, 526 F. 2d 1331, 1334, and it now expressly has declined to do so. See *R. W. T. v. Dalton*, 712 F. 2d 1225, 1232, n. 9 (1983).

⁷ See *Supreme Court of Virginia v. Consumers Union of United States, Inc.*, 446 U. S., at 735, and n. 14.